

#	Case Name	Tentative
		judicial notice. (<i>Hall v. Great W. Bank</i> (1991) 231 Cal.App.3d 713, 718 fn.7.) Defendant argues that a demurrer is warranted because Plaintiffs have not complied with the claim presentation requirement of Gov. Code §915 as it pertains to the Fourth Cause of Action for Wrongful Death. In support of this argument, Defendant requests the court to take judicial notice of the fact that the City has no record of having received any claim regarding the Fourth Cause of Action for Wrongful death within 1 year of the accrual of this cause of action. Government Code §915.2, subd. (a) provides in relevant part, "The claim, amendment, application, or notice shall be deemed to have been presented and received at the time of deposit." Plaintiffs allege in the Third Amended Complaint that they complied with Gov. Code §§915 and 915.2 by depositing their claims in the United States mail, addressed to the Clerk of the Council of the City of Santa Ana on 4/16/25. (TAC ¶¶11-16.) As a result, the question of whether the City Clerk for the City of Santa Ana has a record of receiving Plaintiffs' claim form does not demonstrate as a matter of law that Plaintiffs failed to comply with the requirements of Gov. Code §§915 and 915.2. Accordingly, the demurrer cannot be sustained and the request for judicial notice is DENIED, as the matters Defendant requests the court to take judicial notice of are not relevant to the disposition of the demurrer. Plaintiffs shall provide notice of this ruling.
53.	Fuller v. Exp Realty of California, Inc. 2024-01411644	Defendants Exp Realty of California, Inc., and Christian Fernandez's Demurrer to the First Amended Complaint ("FAC") is OVERRULED in part and SUSTAINED in part. Claims by Mackenzie Fuller On June 10, 2022, Plaintiffs entered into the contract to purchase the real property located at 43B Surfside, Seal Beach ("Property"). (FAC ¶ 7.) Their purchase closed and Plaintiffs took possession of the Property on July 8, 2022. (FAC ¶ 14.) Joshua Fuller filed the initial complaint on July 8, 2024. Mackenzie Fuller was not named as a Plaintiff until November 12, 2025.

#	Case Name	Tentative
		Defendants contend Mackenzie is barred from pursuing her claims against Defendants because her lawsuit was filed more than three years after the closing on the Property. The statute of limitations under the first cause of action for violation of Civil Code §§ 1102 and 2079 is two years from the date of possession. (Civ. Code § 2079.4) For claims of fraud and negligence the statute of limitations is three years and two years respectively. (Code Civ. Proc. §§ 338 and 339.) “Under the doctrine of relation back, a court deems an amended complaint to have been filed at the time of an earlier complaint. The doctrine requires that the amended complaint rest on the same general set of facts, involve the same injury, and involve the same “instrumentality” or cause of injury.” (<i>Hutcheson v. Superior Court</i> (2022) 74 Cal.App.5th 932, 940.) “[A]n amended pleading that adds a new plaintiff will not relate back to the filing of the original complaint if the new party seeks to enforce an independent right or to impose greater liability against the defendants.” (<i>Estrada v. Royalty Carpet Mills, Inc.</i> (2022) 76 Cal.App.5th 685, 715.) Defendants admit in the moving papers that “[t]he allegations [of the FAC] are not substantively changed.” The FAC is based on the same operative facts, the same injury and the same offending conduct alleged in the original complaint. Mackenzie does not seek recovery for a separate personal injury, independent economic loss or distinct cause of action. Rather, she was added as a co-purchaser of the Property seeking recovery for the same property damage and diminution in value arising from the same alleged misconduct of Defendants. No new independent rights are being asserted by Mackenzie. Therefore, the relation back doctrine applies to this case and Mackenzie’s claims are not barred by the statute of limitations. Accordingly, the demurrer as to the statute of limitations with respect to plaintiff Mackenize is OVERRULED. First Cause of Action – Violation of Civil Code §§ 1102 and 2079 Civil Code section 1102 applies to the transfer by sale of real property. (Civ. Code, § 1102.) While sellers must make broad disclosures, agents must make the disclosures required by section Civil Code section 2079. (Civ. Code § 1102.1.) That section requires the real estate broker or agent to “conduct a reasonably competent and diligent <u>visual</u> inspection of the property offered for sale and to disclose to that prospective buyer all facts materially affecting the value or desirability of

#	Case Name	Tentative
		the property that an investigation would reveal.” (Civ. Code § 2079 [emphasis added].) “The inspection to be performed pursuant to this article does not include or involve an inspection of areas that are reasonably and normally inaccessible. Accordingly, a seller’s real estate agent has a statutory duty to disclose only visible defects, i.e., to disclose only what a ‘reasonably competent and diligent visual inspection of the property’ would reveal.” (<i>Peake v. Underwood</i> (2014) 227 Cal.App.4th 428, 442 [cleaned-up].) Defendants argue the FAC does not allege facts that Defendants did not disclose what they saw. While Plaintiffs claim that Defendants failed to disclose “defects in the heating, air conditioning, plumbing, interior or exterior windows, walls, ceilings, patio/decking, and washer/dryer hookups” (FAC ¶ 19), Plaintiffs do not allege that these purported defects were visible, or what defects could have discovered by a competent and visible inspection. The FAC, however, alleges that Defendants knew of a visible water stain in the garage, and knew of prior leaks that had not been repaired and affirmatively misrepresented that all prior leaks were repaired. (FAC ¶¶ 11, 20.) The FAC also alleges that Defendants had actual and/or constructive knowledge of the conditions on the Property and did not disclose them. Under section 2079, Defendants are responsible for disclosing all material facts affecting the value of the Property that an investigation would reveal. If they knew of such conditions, then they were required to disclose them. Accordingly, the demurrer to the first cause of action is OVERRULED. Second Cause of Action – Fraudulent Concealment The elements of a cause of action for fraud are: (1) misrepresentation, which includes a concealment or nondisclosure; (2) knowledge of the falsity of the misrepresentation, i.e., scienter; (3) intent to induce reliance on the misrepresentation; (4) justifiable reliance; and (5) resulting damages. (<i>Small v. Fritz Companies, Inc.</i> (2003) 30 Cal.4th 167, 173.) “In California, fraud must be pled specifically; general and conclusory allegations do not suffice.” (<i>Lazar v. Superior Court</i> (1996) 12 Cal.4th 631, 645.) “This particularity requirement necessitates pleading facts which show how, when, where, to whom, and by what means the representations were tendered.” (Ibid. [cleaned-up].)

#	Case Name	Tentative
		Courts have strictly limited the scope of a seller's agent's disclosure duties under a fraudulent concealment theory. (<i>Peake, supra</i>, 227 Cal.App.4th at 444 [cleaned-up].) "[I]n the context of a real estate transaction, "it is now settled in California that where the seller knows of facts materially affecting the value or desirability of the property ... <i>and also knows that such facts are not known to, or within the reach of the diligent attention and observation of the buyer, the seller is under a duty to disclose them to the buyer.</i>" (Ibid.) Defendants contend there are no facts to support a fraud claim against defendant Fernandez. The representations and disclosures required are made by the seller, not the seller's agent or broker. They have no duty to independently verify the seller's representations. (<i>Robinson v. Grossman</i> (1997) 57 Cal.App.4th 634, 641-642.) While this might be true, the seller's agent has a duty to disclose information or facts that s/he is aware of and knows materially affect the value or the desirability of the property, regardless of what the seller tells him. The FAC alleges Fernandez falsely represented "that the garage structure of the Property had no defects, that the garage did not leak, the lower balcony/deck had been waterproofed, there was no water intrusion, and all prior leaks had been repaired, when in fact Agent knew the garage had leaks, water intrusion, and mold." (FAC ¶ 26.) Plaintiffs further allege Fernandez concealed the truth with the intent to induce them to enter into the agreement to purchase the Property. Had they known the truth, they would not have entered into the agreement or would have negotiated the purchase price to account for the extensive costs of repairs. (FAC ¶ 16.) The allegations in the FAC are sufficient to state a cause of action for fraud against Fernandez. Accordingly, the demurrer to the second cause of action is OVERRULED. Third Cause of Action - Negligent Misrepresentation Defendant argues the FAC fails to allege the representations made specifically by Fernandez, and the representations made by Exp Realty. As stated above, the FAC states what misrepresentations were made by Fernandez, however, it does not state what misrepresentations were made by Exp Realty and/or why they are liable to Plaintiffs.

#	Case Name	Tentative
		Accordingly, the demurrer to the third cause of action with respect to Fernandez is OVERRULED and SUSTAINED as to Exp Realty. Plaintiffs have 20 days leave to amend. The case management conference is continued to November 16, 2026 at 9:00 a.m. in Department C28. The order to show cause is discharged. Defendants shall give notice of this ruling.
54.	Ozzy Vista Panorama LLC v. Jack A. Hanson, Trustee of the Hanson Family Trust dated October 6, 2022 2026-01550880	The motion by defendants Jack A. Hanson and Denise E. Hanson, Co-Trustees of the Hanson Family Trust dated October 6, 2022, to strike portions of plaintiff Ozzy Vista Panorama LLC's Complaint is GRANTED, with leave to amend. (Code Civ. Proc., §§ 435, 436 [authorizing motion].) The Complaint fails to allege sufficient specific facts supporting punitive damages. (Civ. Code, § 3294 [authorizing punitive damages]; <i>Today's IV, Inc. v. Los Angeles County Metropolitan Transportation Authority</i> (2022) 83 Cal.App.5th 1137, 1193 [claims for punitive damages "must include specific factual allegations showing that defendant's conduct was oppressive, fraudulent, or malicious ... [p]unitive damages may not be pleaded generally"]; <i>Lackner v. North</i> (2006) 135 Cal.App.4th 1188, 1210 ["despicable" conduct requirements].) The court orders that ¶ 31 of the Complaint, and that portion of the prayer for relief reading "punitive damages" [Complaint at 8:14] are stricken. Plaintiff is granted 15 days to file a First Amended Complaint, if at all. Moving parties shall give notice of this ruling.
55.	Wang v. Yan 2026-01559681	Plaintiffs Jingfang Wang and Zhihu Yu's Verified Petition for Leave to File a Civil Conspiracy Claim pursuant to Civ. Code §1714.10 is DENIED without prejudice. Plaintiffs have failed to file a proof of service of the petition no later than five court days before the time appointed for the hearing. (See Cal. Rules of Court, Rule 3.1300, subd. (c).) Plaintiffs also failed to provide supporting affidavits with their petition. Civ. Code §1714.10(a) (the filing of the verified petition must have "supporting affidavits stating facts upon which the liability is based.")